

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)**

Writ Petition No. 14067 of 2022

IN THE MATTER OF:

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh

-And-

IN THE MATTER OF:

Md. Sanowar Hossain

.....Petitioner.

-VS-

Secretary, Ministry of Local Government, Rural
Development and Co-operatives, Secretariat
Ramna, Dhaka.

.....Respondents.

Mr. Muhammad Tajul Islam, Advocate

.....for the petitioner

Mr. Tushar Kanti Roy, DAG with

Mr. Md. Salim Azad, A.G.G with

Ms. Anis ul Mawa, A.A.G

.....For the respondents.

Heard on: 29.11.2023 and 02.01.2024

Judgment on : 04.01.2024

Present:

Mr. Justice Mustafa Zaman Islam

And

Mr. Justice Md. Atabullah

Mustafa Zaman Islam, J;

In this application under Article 102 of the Constitution of the People's Republic of Bangladesh, a Rule Nisi was issued calling upon the respondents to show cause as to why inaction of the respondent nos. 2 and 3 in disposing of the petitioner's representations all dated 07.11.2022, 26.10.2022 and

04.09.2022 filed against the illegal activities of the respondent no.4 and unlawful inclusion of 33 co-operative societies in the voter list of the respondent no.4 bank by violating the provisions of regulation 7 of the By-laws of the Samabay Bank Ltd, Rajshahi (Annexure-C, C-1, and I to the Writ petition) and why the schedule of Election declared by the respondent no.6 on 06.11.2022 declaring election of the Management Committee of the respondent no.4 bank to be held on 07.12.2022 (Annexure-H to the writ petition) should not be declared to have done/published without lawful authority and is of no legal effect and/or pass such other or further order or orders passed as to this Court may seem fit and proper.

Facts necessary for disposal of the Rule, in brief, are that:

The petitioner is the secretary of the Yousufpur Union Bohumukhi Samabaya Samity Ltd., Charghat, Rajshahi. The samity of the petitioner is a member and voter of the respondent no.4 bank and the petitioner samity got ample interest in the ,management of the respondent no.4 bank. The petitioner's samity authorized the petitioner to file a writ petition against the illegal activities of the respondent no.4 and unlawful inclusion of 33 co-operative societies in the voter list of the respondent no.4 bank by violating the provisions of regulations 7 of the by laws of the samabay Bank Limited, Rajshahi.

The respondent no.4 bank is a co-operative Bank registered under the co-operative Societies Act, 2001 under the office of the respondent no.3 bearing registration no.476 and the present chairman of the said Bank namely Md. Solaiman who has been occupying the bank since long time by election engineering and by admitting members in the bank whoa re not qualified to be

member of the said bank. The said Chairman falsely included 33 disqualified co-operative societies as member of the respondent no.4.

The petitioner made a representation before the respondent no.4 on 13.10.2022 asking him to amend the draft voter list for the election to be held in the year of 2022 and exclude the 33 illegal and disqualified co-operative societies voters who were included in the draft voter list. The respondent no. 4 Bank did not pay any heed to the representation filed by the petitioner.

On 04.09.2022, the petitioner filed a complaint before the respondent no. 3 against the illegal activities and corruption of the Chairman of the respondent no.4 Bank but the respondent no.3 did not take any action on it.

On 26.10.2022 and 07.11.2022 petitioner made two separate representations before the respondent no.3 requesting him to cancel the draft voter list of the respondent no.4 bank but the respondent no.4 did not take any action on it.

Finding no other alternative efficacious remedy the petitioner has moved before this Court and obtained the instant Rule Nisi.

Mr. Muhammad Tajul Islam, the learned Advocate for the petitioner submits that the respondents committed gross illegality in publishing the final voter list and declaring the election schedule without disposing of the objection raised against the voter list within 15 days as per provision of Rule 30 of the Samabaya Samity Bidhimala, 2004 as such the impugned election schedule has been declared without lawful authority and is of no legal effect. He submits that, as per provision of Rule 30(5) of the Samabaya Samity Bidhimala, 2004 the decision of the registrar shall be final but despite raising the allegation against the faulty voter list the Registrar or Joint Registrar did not pass any order on it and as such the respondent no.2 and 3 need to be directed to dispose

of the petitioner's representation and the schedule needs to be declared to have been published without lawful authority and is of not legal effect.

Mr. Tushar Kanti Roy, learned Deputy Attorney General appearing on behalf of respondents opposes the Rule and submits that according to the term of Rule issuing order, it shows that this Rule has become infracteous.

We have perused the Writ petition its annexure and other materials on record.

It appears from the record that the petitioner made a representation before the respondent no.4 on 13.10.2022 which is still pending. Though, the direction has given to the respondent no.4 who did not pay any heed to the same filed by the petitioner.

That being so, this court took judicial notice of the facts that over a period of disposal of the application. For ends of justice would be best serve if we direct the respondent no.4 to dispose of the petitioner's application dated 13.10.2022 within 30 days on receipt of this judgment and order.

With the above observation and directions, the rule is disposed of.

The respondent no.4 is hereby directed to dispose of the petitioner representation before the respondent no.4 dated 13.10.2022 within 30 days from the date of receipt of this order.

Communicate the judgment and order at once.

Md. Atabullah, J:

I agree.